

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 20 2026, AT 8:30 A.M.**

8. S-CV-0056734 TAYLOR INVESTMENTS v. LAGERQUIST, REID

Plaintiff/Cross-Defendant Taylor Investments, LLC's Motion to Dissolve or Modify Injunction Pursuant to C.C.P. § 533

Preliminary Matters

Defendant's objection to paragraph 6 of Denys Panibrats's declaration is sustained. The remainder of the objections are overruled.

Plaintiff's requests for judicial notice of the existence of the grant easement and PG&E Rule No. 16 are granted.

Ruling on Motion

Plaintiff moves for the court to modify or dissolve the injunction granted on March 18, 2026.

Code of Civil Procedure section 533 provides

In any action, the court may on notice modify or dissolve an injunction or temporary restraining order upon a showing that there has been a material change in the facts upon which the injunction or temporary restraining order was granted, that the law upon which the injunction or temporary restraining order was granted has changed, or that the ends of justice would be served by the modification or dissolution of the injunction or temporary restraining order.

(Code Civ. Proc., § 533.)

There have not been any material changes in the facts or law since the injunction was granted. Nor would the ends of justice be served from dissolving or modifying the injunction. A dissolution or modification to the injunction would disrupt the status quo and contravene the language of the recorded easement.

Accordingly, plaintiff's motion is denied without prejudice.

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